

25CHCV03967 25CHCV03967

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Dept. F47

Date: 6/25/26

Case #25CHCV03967

DEMURRER &
MOTION TO STRIKE TO THE ORIGINAL COMPLAINT

Demurrer & Motion to Strike filed on 1/29/26.

MOVING PARTY: Defendants The Santa Clarita Community
College District, Sebastian Cazares, Joan MacGregor, Jerry Danielson, Edel
Alonso and David Andrus

RESPONDING PARTY: Plaintiff Dianne Van Hook

NOTICE: ok

Demurrer is to the 8th, 9th, 12th,
13th, 14th and 15th causes of action:

(1)

Breach of Written Contract

(2)

Breach of the Implied Covenant of Good Faith and
Fair Dealing

(3)

Wrongful Termination By Constructive Discharge

(4)

Wrongful Termination In Violation of Public
Policy

(5)

Wrongful Termination – Age Discrimination
(Government Code 12940(a))

(6)

Wrongful Termination – Racial Discrimination
(Government Code 12940(a))

(7)

Hostile Work Environment (Government Code
12940(a))

(8)

Aiding and Abetting Retaliation ,
Discrimination and Harassment (Government Code 12940(a))

(9)

Violation of Due Process of Permanent
Public Employee – (California Constitution, Article 1, Section 7)

(10)

Retaliation
- Government Code 12940(h))

(11)

Failure to Provide Personnel File (Labor Code
1198.5)

(12)

Violation of the Tom Bane Civil Rights
Act (Civil Code 52.1)

(13)

Harassment

(14)

Conversion

(15)

Intentional Infliction of Emotional

Distress

RELIEF REQUESTED IN MOTION TO STRIKE: An order striking allegations regarding and the prayer for punitive damages in relation to the 13th, 14th and 15th causes of action (§120, p.23:13-17; §125, p.24:7-9; §127, p.24:18-22; §128, p.24:23-25; §129, p.24:26-28; Prayer No.15, p.26:1-2).

RULING: The demurrer is sustained with 30 days leave to amend. The motion to strike is placed off calendar as moot.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of Plaintiff Dianne Van Hook's (Plaintiff) termination as Chancellor of the College of the Canyons/Santa Clarita Community College District (District).

After being placed on administrative leave by the District's Board of Trustees, Plaintiff resigned as Chancellor.

On 11/7/25, Plaintiff filed this action against the District and individual Board members, Sebastian Cazares, Joan MacGregor, Jerry Danielson, Edel Alonso and David Andrus (collectively, the Individual Defendants) alleging causes of action for: (1) Breach of Written Contract against the District, (2) Breach of the Implied Covenant of Good Faith and Fair Dealing against the District, (3) Wrongful Termination By Constructive Discharge against the District, (4) Wrongful Termination In Violation of Public Policy against the District, (5) Wrongful Termination – Age Discrimination (Government Code 12940(a)) against the District, (6) Wrongful Termination – Racial Discrimination (Government Code 12940(a)) against the District, (7) Hostile Work Environment (Government Code 12940(a)) against the District, (8) Aiding and Abetting Retaliation, Discrimination and Harassment (Government Code

12940(a)) against the Individual Defendants, (9) Violation of Due Process of Permanent Public Employee – (California Constitution, Article 1, Section 7) against all of the Defendants, (10) Retaliation - Government Code 12940(h)) against the District, (11) Failure to Provide Personnel File (Labor Code 1198.5) against the District, (12) Violation of the Tom Bane Civil Rights Act (Civil Code 52.1) against all Defendants, (13) Harassment against all Defendants, (14) Conversion against all Defendants except MacGregor and (15) Intentional Infliction of Emotional Distress against all Defendants.

After meet and confer efforts failed to resolve the issues Defendants had with the complaint, on 1/29/26, Defendants filed and served the instant demurrer to the 8th, 9th, 12th, 13th, 14th and 15th causes of action on the grounds of failure to state sufficient facts to constitute a cause of action and uncertainty. CCP 430.10(e), (f). The Court notes that the notice of demurrer, the body of the memorandum of points and authorities and the proposed order only address the foregoing causes of action. However, the introduction to the memorandum of points and authorities also makes reference to the 5th and 6th causes of action failing to state sufficient facts to constitute a cause of action. (See Demurrer, p.1:26-p.2:2). Since a demurrer as to the 5th and 6th causes of action was not properly noticed or supported, it is not considered.

Defendants also move to strike allegations regarding and the prayer for punitive damages in relation to the 13th, 14th and 15th causes of action (§120, p.23:13-17; §125, p.24:7-9; §127, p.24:18-22; §128, p.24:23-25; §129, p.24:26-28; Prayer No.15, p.26:1-2).

Plaintiff has opposed the demurrer and motion to strike and Defendants have filed replies to the oppositions.

ANALYSIS

Government Code 820.2 provides that “[e]xcept as otherwise provided by statute, a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused.”

The California Supreme Court has held that the discretionary act immunity provided by Government Code 820.2 prohibits actions under the Fair Employment and Housing Act (FEHA) against public employees or officials as individuals when the action challenges a personnel action that amounts to a basic policy decision such as the selection or dismissal of the chief operating officer of a school district. See Caldwell (1995) 10 C4th 972, 988-989.

In Caldwell, the individual board members who had voted to terminate the school district's superintendent had discretionary immunity. Id.

The Caldwell court went on to state:

"By the terms of section 820.2, such personal immunity applies even against liabilities imposed by prohibitory state statutes of general application such as FEHA, unless there is a clear indication of legislative intent that immunity be withdrawn in the particular case. There is no indication of legislative intent that, notwithstanding the statutory immunity for discretionary acts, public employees may be personally sued for personnel decisions which violate FEHA. Hence, that immunity must prevail, if otherwise applicable, over FEHA claims against public employees in their individual capacities." Id.

Similar to the plaintiff in Caldwell, here, the Board of Trustees placed Plaintiff on administrative leave and then Plaintiff filed this action alleging various causes of action as a result of such conduct. Despite Plaintiff's claims to the contrary and attempts to distinguish this case from Caldwell, all of the causes of action against the Individual Defendants arise out of the Board's discretionary act of voting to place Plaintiff on administrative leave.

Plaintiff's own allegations and arguments in opposition to the demurrer further establish that the claims against the Individual Defendants are related and intertwined with Plaintiff's wrongful termination and FEHA discrimination claims. Plaintiff's 8th cause of action against the Individual Defendants is for aiding and abetting retaliation, discrimination, and harassment and, in relation to that cause of action, the opposition argues that "Government Code § 12940 and related provisions (Fair Employment and Housing Act) prohibit harassment in the workplace based on protected characteristics

such as race, sex, religion, disability, and age" which establishes the relationship between the claims. (See Opposition, p.11:26-28).

Plaintiff's reliance on Leon (2023) 14 C5th 910 is also misplaced as Leon involved a different statute, Government Code 821.6, and the Court limited the immunity to the specific conduct in the statute. Moreover, the court in Leon, citing Caldwell, noted that "[t]he 'most significant' of the Act's immunity provisions confers a general immunity for discretionary acts taken with the scope of authority (citations omitted). This immunity was long recognized at common law (citing Caldwell at p. 979, citations omitted)." Leon, supra at 928.

Plaintiff's reliance on cases (e.g. Sanborn (1976) 18 C3d 406, 415; Taylor (2006) 144 CA4th 1216, 1239) involving routine and ministerial acts are distinguishable because, as noted above, the claims against the Individual Defendants are based on their discretionary act of voting to place Plaintiff on administrative leave which is a basic policy level decision, not a routine or ministerial act.

Additionally, Plaintiff has failed to plead sufficient facts to support the conclusory allegations in the 8th, 9th, 12th, 13th, 14th and 15th causes of action against any of the Defendants. Plaintiff alleges that the Individual Defendants met and agreed to remove Plaintiff from her position and then constructively terminated her. Plaintiff does not include facts which establish that any of the Individual Defendants aided and abetted any discrimination or harassment. There are also no facts alleged to show that any of the Individual Defendants violated Plaintiff's due process rights as claimed in the 9th cause of action. In turn, the complaint also fails to allege sufficient facts to state such claim against the District.

To state the 12th cause of action for Violation of the Tom Bane Civil Rights Act (Civil Code 52.1), Plaintiff must show: (1) Defendants caused Plaintiff to reasonably believe, by threats, intimidation, or coercion, that if plaintiff exercised a Constitutional right, Defendants would commit violence against her while having the apparent ability to carry out the threats, or that Defendants acted violently against Plaintiff to

prevent her from exercising a right, or retaliated against Plaintiff for having exercised said right; (2) Defendants intended to deprive Plaintiff of her enjoyment of the interests protected by the right; (3) Plaintiff was harmed; and (4) Defendants' conduct was a substantial factor in causing Plaintiff's harm. See CACI 3066. Plaintiff has failed to allege facts to support the foregoing elements against any specific Individual Defendant or the District.

Similarly, Plaintiff has failed to allege any specific facts against any Individual Defendant to support the conclusory allegations in the 13th cause of action for harassment, 14th causes of action for conversion and 15th cause of action for intentional infliction of emotional distress. The elements of a conversion cause of action are: (1) ownership or the right to possession of the personal property at the time of the alleged conversion; (2) the defendant's wrongful exercise of dominion or control over the property inconsistent with the plaintiff's rights; and (3) resulting damages. *Prakashpalan* (2014) 223 CA4th 1105, 1135. Here, Plaintiff fails to identify what personal property she claims she was deprived of by any Individual Defendant or the District. Plaintiff also does not identify which specific Defendant refused to either allow her access to the property or prevented her from obtaining the personal property.

The elements of an intentional infliction of emotional distress cause of action are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. *Hughes* (2009) 46 C4th 1035, 1050-1051. For purposes of an intentional infliction of emotional distress cause of action, a defendant's conduct is "outrageous" when it is so "extreme as to exceed all bounds of that usually tolerated in a civilized community." *Id.* at 1051. With regard to severe emotional distress, the emotional distress must be of such substantial or enduring quality that no reasonable person in civilized society should be expected to endure it. *Id.* Again, Plaintiff only makes conclusory allegations without any facts regarding conduct of any Defendant that was so extreme and outrageous as to be beyond the bounds tolerated in a civilized society.

CONCLUSION

The demurrer as to the 8th, 9th, 10th, 12th, 13th, 14th and 15th causes of action is sustained. Due to the liberal policy of allowing leave to amend, Plaintiff's counsel's indication that additional facts can be alleged and because this is only the original complaint, Plaintiff is given the opportunity to try to cure the defects in her pleading.

The motion to strike is placed off calendar as moot as all of the allegations sought to be stricken are contained in or relate to the 13th, 14th and 15th causes of action to which the demurrer is being sustained with leave to amend.

A First Amended Complaint must be filed and served within 30 days.